IN THE SUPREME COURT OF THE STATE OF MONTANA

OP 24-0197

KASIDY ADAM MILLER,
Plaintiff and Appellee,

v.

JIM SALMONSEN, WARDEN, MONTANA STATE PRISON,
Defendant and Appellant.

On Appeal from Montana Tenth Judicial District, Fergus County, before the Honorable Heather Perry

PETITION FOR WRIT OF HABEAS CORPUS

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Pursuant to 46-22-101, MCA et. seq., Petitioner hereby makes application for a Writ of Habeas Corpus and states as follows:

1. On December 15, 2023 in Cause No. DC-14-2022-53, Plaintiff was sentenced to the Montana State Prison for a period of two (2) years. That sentence provides that it was not to run concurrently with any other sentence Plaintiff was serving (Ex. 1). By its own terms, this sentence was to commence on December 15, 2023.

2. On February 7, 2024, Judge Brenda Gilbert revoked Plaintiff's sentence in Cause No. DC-14-2015-03. That order provided that the sentence in that case would expire on March 16, 2023 (Ex. 2).

3. Prior to December 15, 2023, Petitioner had been sentenced out of Missoula County on a drug possession charge given a three (3) year suspended sentence which provided it was to run consecutively with any other sentence Plaintiff received (Cause No. DC-32-2021-48 Doc. #28). Also, a petition to revoke that suspended sentence was filed, then later dismissed by the Missoula County attorney's office (Ex. 3).

4. In Montana, a sentence must be determined to run either concurrently or consecutively to any other existing sentence imposed on a defendant.

5. In Montana, there is no such thing as a "stand alone sentence that can run neither concurrently nor consecutively. Therefore, Petitioner's sentence is factually invalid unless it is deemed to run consecutive to this Missoula sentence. This means that reading the Missoula sentence and the sentence imposed by this court, Petitioner must serve out the terms of his Missoula sentence first (3 years suspended) then serve the two (2) year Montana State Prison sentence imposed in DC-14-2022-53. Therefore, Petitioner should be released from imprisonment in the Montana State Prison forthwith.

As a second ground for issuance of a Writ of Habeas Corpus, Petitioner states:

6. As of Monday March 18, 2024, Petitioner will have been incarcerated in DC-14-2022-53 for a period of 193 days, or more than 25% of his two (2) year Montana State Prison sentence. Under Montana law, a Defendant is eligible for parole after serving 25% of his sentence, and Petitioner was given credit for this period of incarceration in DC-14-2022-53. In fact, Petitioner may have already been paroled on the sentence imposed in DC-14-2022-53 (Ex. 4). Petitioner, as this arrest warrant shows, has been incarcerated since September 8, 2023.

7. As a result, Petitioner has spent over 25% of his time in county jails. He has been denied his parole eligibility date. He may even have been paroled. If this

is the case, then the sentence in DC-14-2022-53 is illegal because there has been no rehabilitation component in Petitioner's sentence. He has been incarcerated this entire time without receiving any counseling or treatment whatsoever. Given his short sentence and the long wait time for inmates to receive alcohol treatment, Petitioner will not receive any counseling or treatment before he is paroled.

8. This situation will continue indefinitely all contrary to the intent of the sentence in DC-14-2022-53.

RELIEF REQUESTED

1. For an issuance of Writ of Habeas Corpus ordering Petitioner's immediate release from the MSP.

2. For such other relief that this Court deems proper.

Dated this 28th day of March, 2024.

/s/ *TORGER OAAS*
TORGER OAAS
Attorney for Appellee